HEADNOTE

“1. The RoP do not allow "aggressive interventions" or "principal interventions" (i.e. interventions whereby the intervener directs claims against one or more of the other parties different to one it supports).
2. A party can be held intervener in the infringement action (and be "treated as a party") and defendant in the counterclaim for revocation. The introduction of a counterclaim for revocation will reclassify the status of intervener (patent holder) to defendant, but will not imply the reclassification of the status of this intervener (patent holder) to co-claimant in the infringement proceedings.
3. The managerial powers of the Court in application of R. 305 RoP and R. 315 RoP to reclassify (on its own motion or upon application thereto) the status of party from intervener to coclaimant (or co-defendant) depends on the circumstances of the case.
4. A "request to invite a party to introduce an application" is not a proper procedural request. Whether or not an actual application is introduced, should not be based on an invitation by the Court but depends on the applicant's own procedural strategy. Whether such an application would be admissible or not needs to be assessed by the Court once the application has actually been introduced.
5. The term "for the purpose of the proceedings" in R. 8.4 RoP applies only for the application of the RoP and more specifically the administrative tasks to be performed by the Court. For this purpose a legal fiction is created. On the other hand, this legal fiction is held not to apply for questions of substantive law and therefore, in an action for which the UPC is competent, a defendant has the right to bring a defence comprising the issue of entitlement. The presumption of entitlement created in R. 8.4 RoP regarding substantive law is rebuttable.
6. When assessing an application to produce evidence, the Court should assess the plausibility of the underlying claims at that stage of the proceedings. The assessment on this plausibility does not affect the assessment of the panel when having to decide the claims on the merits.
7. The condition of "prior notice" in Article 47(2) or (3) UPCA should be

> *assessed by the Court when the action is brought, specifically on the date on which the action in application of R. 17.1 RoP is recorded in the register (i.e. after the Registry's formal examination of the Statement of Claim (R. 16 RoP with an explicit reference in R. 16.2 RoP to RoP to R. 13.1(f) RoP). The burden of proof of complying with this condition lies solely on the claimant. However, although the Court should position itself on the moment the action is brought, the UPC_CFI_029/2026 , UPC_CFI_1934/2026 , UPC_CFI_1940/2026 claimant is still allowed to introduce additional evidence in support of the already introduced evidence in application of R. 13.1(f) RoP."*

COURT
Local Division in Brussels

PROCEEDINGS
Counterclaim for revocation

PATENT
EP 3 689 383

CHIMERIC ANTIGEN RECEPTORS TARGETING B-CELL MATURATION ANTIGEN

KEYWORDS

- R. 305 RoP (Application Change in Parties)
- R. 315 RoP (Classification of the intervener...
- R. 190 RoP (Production of evidence)
- Art. 47 (2) and (3) UPCA (Standing to sue)
- Art. 47 (5) UPCA (Presumption of entitleme...
- R. 8.4 and R.8.5 RoP (Presumption)
- Entitlement as a defence in UPC proceedin...

Rule 305 Change in parties

SUMMARY
The Local Division in Brussels ruled on a counterclaim for revocation. The patent at issue relates to chimeric antigen receptors targeting B-cell maturation antigen. According to the headnotes of the decision, the Rules of Procedure do not permit aggressive interventions. An intervener may not direct claims against parties it does not support. A party may serve as an intervener in infringement proceedings and simultaneously as a defendant in a revocation counterclaim. However, introducing a counterclaim reclassifies an intervening patent holder to defendant status without reclassifying it as co-claimant in the infringement action. The Court's power to reclassify party status from intervener to co-claimant or co-defendant depends on the specific circumstances of each case. Furthermore, a request to invite a party to introduce an application is not a valid procedural request. Admissibility must be assessed only after an actual application is formally submitted. Additionally, the legal fiction created under the Rules of Procedure for administrative purposes does not apply to substantive law questions. This means that a defendant may raise entitlement issues as a defence, and the statutory presumption of entitlement is rebuttable. When assessing applications to produce evidence, the Court must evaluate the plausibility of underlying claims at that procedural stage. However, this assessment does not bind the panel's subsequent decision on the merits. In proceedings involving prior notice requirements, the Court assesses compliance as of the date the action is registered. The burden of proof lies solely on the claimant. The claimant may nonetheless introduce additional supporting evidence even after the initial submission.